215 East Bay Street, Suite 201K, Charleston, South Carolina 29401

BUSINESS ASSETS LISTING AGREEMENT

(Exclusive Right to Sell)

This Business Assets Listing Agreement (this **"Agreement"**) is made and entered into as of {{start_date}} by and between **EXCLUSIVE BUSINESS BROKERS INC.**, a South Carolina corporation with its registered office at 215 East Bay Street, Suite 201K, Charleston, South Carolina 29401 (the **"Broker"**), and **{{business_name}}**, with its principal place of business at {{business_address}} (the **"Seller"**). In consideration of the mutual promises set forth below, the parties agree as follows:

1. Definitions. **"Business"** means the business carried on by the Seller under the name "{{business_name}}" and all related operations and assets owned by the Seller. **"Assets"** means all property, rights, and interests of the Seller used in connection with the Business, including all intellectual property (registered and unregistered); all domain names, websites, online platforms, and social media accounts, including "{{business_website}}"; all marketing materials, content, and goodwill; all operations, systems, software licenses, subscriptions, and technology platforms; and all books and records, digital files, client and prospect lists, and historical content archives, in each case insofar as they relate to the Business. **"Listing Price"** means the asking price of the Business for marketing purposes. **"Purchase Price"** has the meaning set forth in Section 5(b). **"Buyer"** means a purchaser ready, willing, and able to purchase the Business or the Assets. **"Closing"** means the consummation of a sale of all or any material portion of the Business or the Assets, whether structured as an asset sale, equity sale, merger, or otherwise.

2. Exclusive Engagement; Term. Seller hereby grants Broker the **sole and exclusive right** to market and arrange the sale of the Business and the Assets for a period of four (4) months commencing on {{start_date}} and ending at 11:59 p.m. on {{end_date}} (the **"Period"**). Thereafter, this Agreement shall automatically continue on the same exclusive terms on a month-to-month basis unless either party terminates by thirty (30) days' prior written notice. During the Period and any continuation, Seller shall not engage any other broker, agent, or intermediary, shall promptly refer to Broker all inquiries and offers received from any source, and shall not directly or indirectly negotiate a sale of the Business or the Assets other than through Broker. The Broker Fee (Section 5) shall be due if the Business or any material portion of the Assets is sold, transferred, or contracted to be sold during the Period or any continuation, regardless of who procures the Buyer, including the Seller.

3. Broker's Duties. Broker accepts this engagement and shall use commercially reasonable best efforts to market the Business, identify prospective Buyers, present all offers to Seller, and assist Seller through negotiation and Closing. Broker shall: (a) conduct reasonable screening of prospective Buyers, including financial capability and general suitability, before sharing confidential information; (b) obtain a signed non-disclosure agreement, in a form reasonably acceptable to Seller, from each prospective Buyer before disclosing confidential or proprietary information concerning the Business; (c) obtain Seller's prior approval of marketing materials and listings before publication; (d) provide Seller with periodic written status reports summarizing buyer inquiries and material developments; and (e) make no representations or commitments on Seller's behalf without Seller's approval — Broker has no authority to bind Seller. Broker shall hold Seller's confidential information in strict confidence, using it solely for purposes of this engagement. Broker charges **no retainer or upfront fee**; Broker's sole compensation is the Broker Fee described in Section 5, and Broker bears its own marketing costs.

4. Listing Price; Seller's Discretion. The Listing Price shall be {{purchase_price_formatted}}. The Listing Price is an asking price for marketing purposes only and is not a guarantee or representation of the actual Purchase Price, which shall be determined by negotiation between Seller and a Buyer and may be higher or lower than the Listing Price. Seller retains sole and absolute discretion to accept, reject, or counter any offer.

5. Broker Fee. (a) Seller shall pay Broker a fee (the **"Broker Fee"**) equal to **{{commission_percentage}} of the Purchase Price**. The Broker Fee is fully earned at Closing and is payable as follows: (i) the portion of the Broker Fee attributable to Purchase Price paid or payable at Closing shall be paid in full at Closing; and (ii) the portion attributable to deferred or contingent consideration (including earn-outs, seller notes, and installment payments) shall be paid proportionally as and when Seller or its affiliates actually receive each such payment, due within ten (10) days of receipt. Seller shall notify Broker in writing of each such receipt. If Seller voluntarily forgives, discounts, settles, offsets, or fails to use commercially reasonable efforts to collect any deferred or contingent amount without Broker's prior written consent, the Broker Fee on such amount shall be calculated on its full original face value and become immediately due. Amounts not paid when due shall bear interest at the lesser of 1% per month or the maximum lawful rate.

(b) **Purchase Price** means all economic consideration agreed to be paid or provided to Seller or Seller's affiliates in connection with the transaction, including cash at Closing, deposits (refundable or non-refundable) once the transaction closes, earn-outs, seller notes, assumed seller debt, consulting or employment compensation, non-compete payments, and any other consideration. The parties shall not renegotiate, recharacterize, or reduce the Broker Fee through changes to deal structure, allocation of consideration, or characterization of payments.

(c) The transaction shall ordinarily close through a licensed attorney, escrow agent, or settlement agent. Seller authorizes Broker to provide this Agreement to the closing agent and irrevocably directs such agent to disburse the Broker Fee to Broker at Closing from transaction proceeds. If any portion of the Purchase Price is paid in cryptocurrency outside of escrow, Seller shall remit the corresponding portion of the Broker Fee to Broker at the same time and in the same manner as received, valued at fair market value in United States Dollars at the date and time of receipt using a mutually agreed reputable exchange or index.

6. Protection (Tail) Period. If, within twenty-four (24) months after the expiration or termination of this Agreement, Seller sells, transfers, or contracts to sell all or any material portion of the Business or the Assets to a Protected Buyer, the full Broker Fee shall be due and payable upon the closing of such transaction, on the payment terms set forth in Section 5. **"Protected Buyer"** means any person or entity who was introduced to the Business by Broker, who learned of the Business through Broker's efforts, or with whom Broker or Seller had contact or negotiations concerning the Business during the term of this Agreement, in each case as identified on a written list delivered by Broker to Seller within five (5) business days after expiration or termination of this Agreement, together with such person's affiliates, principals, and assigns.

7. Seller Withdrawal; Default. If Seller withdraws the Business from sale during the initial Period without cause, Seller shall reimburse Broker's documented out-of-pocket marketing expenses. If Seller wrongfully refuses or fails to complete a sale after executing a definitive purchase agreement with a Buyer, the full Broker Fee, calculated on the Purchase Price set forth in that agreement, shall become immediately due and payable.

8. Forfeited Deposits. If a Buyer forfeits any deposit, the forfeited funds shall be divided equally between Seller and Broker; provided that Broker's share shall not exceed the full Broker Fee that would have been payable, and shall be credited against any Broker Fee subsequently due upon a sale of the Business.

9. Seller Representations; Information. Seller represents and warrants that: (a) Seller owns the Business and the Assets and has full power and authority to enter into this Agreement and to sell the Business; (b) Seller is, and shall remain, in material compliance with all applicable federal, state, and local laws governing the operation and sale of the Business; and (c) all information, financial statements, records, and other materials provided to Broker, its representatives, or any prospective Buyer are true, correct, and complete in all material respects and do not omit any information necessary to make such materials not misleading. Seller acknowledges that Broker relies entirely on such information to evaluate, market, and present the Business and conducts no independent verification. Seller shall promptly notify Broker in writing of any material change, error, or inaccuracy in the information supplied.

10. Mutual Indemnification; Limitation of Liability. (a) Seller shall indemnify, defend, and hold harmless Broker and its officers, directors, agents, contractors, employees, and affiliates from and against all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (i) any misrepresentation, omission, or inaccuracy in information provided by Seller; (ii) any breach of this Agreement by Seller; or (iii) any act, error, or omission of Seller in connection with the Business, its operations, or its sale. (b) Broker shall indemnify, defend, and hold harmless Seller and its officers, directors, agents, employees, and affiliates from and against all such losses arising out of or relating to: (i) any representation or commitment made by Broker on Seller's behalf without Seller's approval; (ii) any breach of Broker's confidentiality obligations; or (iii) Broker's gross negligence, willful misconduct, or fraud. (c) Broker makes no representation or warranty, express or implied, as to the accuracy or completeness of information provided by Seller or any third party and shall have no liability to Seller, any Buyer, or any other party for any misstatement or omission therein or reliance thereon. Except for the matters described in clause (b), Broker's aggregate liability under this Agreement shall not exceed the Broker Fee actually received by Broker.

11. Confidentiality. Each party shall keep confidential the terms of this Agreement, the identity of prospective Buyers, and all non-public information received from the other party, and shall use such information solely for purposes of this engagement, except for disclosures required by law or made to a party's professional advisors under a duty of confidentiality.

12. Independent Contractor; No Professional Advice. Broker is an independent contractor and is not Seller's attorney, accountant, securities broker-dealer, or real estate licensee. Broker provides no legal, tax, accounting, securities, or real property brokerage services under this Agreement, and any sale or lease of real property shall be handled separately by appropriately licensed professionals. Seller is advised to retain its own legal, tax, and financial advisors.

13. Governing Law; Dispute Resolution. This Agreement shall be governed by and construed in accordance with the laws of the State of South Carolina, without regard to conflict-of-laws principles. Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach thereof, shall be finally settled by binding arbitration in Charleston, South Carolina, administered by the American Arbitration Association under its Commercial Arbitration Rules and the Federal Arbitration Act (9 U.S.C. § 1 et seq.), before a single arbitrator mutually agreed by the parties or, failing agreement within thirty (30) days of a demand, appointed by the AAA; the arbitrator may permit remote participation by any party located outside South Carolina. The award shall be final and binding, and judgment upon the award may be entered in any court of competent jurisdiction. In any arbitration or court proceeding arising out of or relating to this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees, costs, and expenses.

14. General. This Agreement constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior agreements and understandings. It may be amended only in a writing signed by both parties. If any provision is held unenforceable, the remainder shall continue in full force, and such provision shall be enforced to the maximum extent permitted. No waiver of any provision is effective unless in writing. This Agreement binds and benefits the parties and their respective successors and permitted assigns; Seller may not assign this Agreement without Broker's written consent. Sections 5, 6, 7, 8, 10, 11, and 13 survive expiration or termination. This Agreement may be executed in counterparts, including by electronic signature, each of which constitutes an original.

THIS IS A LEGALLY BINDING CONTRACT. PLEASE READ IT CAREFULLY BEFORE SIGNING.

Each undersigned signatory acknowledges that the party on whose behalf they sign has read, understood, and agrees to be bound by this Agreement, and represents and warrants that they are duly authorized to execute this Agreement on behalf of such party and, in the case of the Seller, that the Seller constitutes all of the owners of the Business listed herein.

BROKER: EXCLUSIVE BUSINESS BROKERS INC.	**SELLER:** {{business_name}}
Name: **Jarrod Swanger**	Name: **{{seller_name}}**
Title: **CEO & Managing Partner**	Title: **{{seller_title}}**
Date: ____________________	Date: ____________________
Signature: ____________________	Signature: ____________________